

OBSERVATIONS BY M. PESSÔA.

[*Translation.*]

I.

The object of orders, in the words of Article 48 of the Statute, is "the conduct of the case", the decision as to "the form and time in which each Party must conclude its arguments".

In the present case it seems to me that there is no question of this. France and Switzerland, having "been unable to agree in regard to the interpretation to be placed on Article 435, paragraph 2, of the Treaty of Versailles, with its annexes", and having need of this interpretation "to settle the new régime" contemplated by the said article for the territories of Upper Savoy and the District of Gex, have requested the Court to say, "*before pronouncing any decision*", whether Article 435 "has abrogated or is intended to lead to the abrogation of" certain provisions of the Treaty of Paris of November 20th, 1815, and other instruments.

What the two countries therefore seek from the Court is a *legal opinion* as to the doubtful interpretation of a treaty. What they seek from it is therefore *its views* as to this interpretation. There is no question of arranging for "the conduct of the case" or deciding the time and form for the conclusion of the respective arguments, which is the purpose of orders; it is in reality a question of an *advisory opinion* sought by the actual Parties to the dispute, notwithstanding the definite terms of Articles 14 of the Covenant and 72 of the Rules of Court, according to which only the Council or Assembly of the League of Nations may ask the Court for advisory opinions, and the Court may only give such opinions to one of those bodies. When doubts arose between Turkey and Greece regarding the interpretation of the Agreement of December 1st, 1926, the two countries did not directly approach the Court with a request for the correct interpretation of the instrument; it was the Council of the League

of Nations which did so. The Franco-Swiss case is entirely similar; there was no reason for pursuing a different course, especially seeing that that course is contrary to the very terms of a clause of the Court's constitutional provisions.

If it is desirable to extend the Court's powers, let the Covenant be amended and the Court be given all the powers considered to be expedient; but so long as the Covenant remains as it is, the Court cannot, of its own authority, arrogate to itself a power which the Covenant expressly withholds from it.

It is contended that in the present case, the purpose of the order is to fix a period of time—namely, that contemplated by Article 1, paragraph 2, of the Special Agreement.

But in actual fact this is not so, for the fixing of this time *follows* the *decision* given by the Court in the *order* in regard to the points at issue between the two Parties and is scarcely an *effect* or *consequence* of this decision. The *main* object of the order is to establish what is, in the opinion of the Court, the true construction of Article 435 of the Peace Treaty and to convey this *opinion* to the Parties in reply to their request for the *opinion* of the Court. The time-limit comes *afterwards* and cannot even be fixed *unless the decision as to the interpretation has been given*; this clearly shows that the time-limit is merely a *secondary* and *incidental* point in the order.

It is impossible therefore to avoid the logical conclusion: the case is not one for *judgment*, since the Special Agreement expressly rules out a judgment; nor is it one for an *advisory opinion*, since neither the Council nor Assembly has asked for one; nor for an *order*, which is not required for the purpose of the conduct of the case; and since the Court can only express a decision by one of these three means, it follows that it should have refused to entertain the case, on the ground that the clause whereby the Special Agreement seeks the Court's opinion is not valid, having regard to the imperative terms of Article 14 of the Covenant and Article 72 of the Rules of Court.

II.

I quite agree with the Court when it states that Article 435, paragraph 2, of the Treaty of Versailles *has not abrogated* the provisions of the Treaty of 1815 and other supplementary instruments.

With regard, however, to the other question put by the Special Agreement, I venture to make the following observations :

According to Article 435, the free zones constitute a régime which is not consistent with present conditions. It says so in definite terms. It is easy to understand why: this régime involves a restriction upon the sovereignty of France, which, in principle and like any other nation, is entitled to exert its fiscal authority throughout its territory as far as the line of its political frontier. The intention of the Treaty therefore is that such a régime *should* disappear. A régime which *is no longer consistent* with present conditions *should not* remain unaltered. It *should* be replaced by another. The intention, the idea—"the object"—of the Treaty is therefore the abrogation of this régime. But the *new* régime is to be created by mutual agreement between the two countries. The agreement will thus relate not to the *actual fact of replacement*, but solely to *the form and conditions* of replacement.

The last part of paragraph 2 of Article 435 expressly contemplates *a new régime*. How can the Treaty contemplate a new régime if its *object is not the abrogation* of the present one?

The two countries refer continually to a "new arrangement". How can they contemplate a new arrangement if there is no idea of replacing the existing one?

It is pointed out that in Annex I, Switzerland opposes the *abolition* of the zones. But the note of May 29th indicates better the ideas of that country: it recognizes that the former stipulations "may be modified or *replaced* by mutual agreement" between the Parties. It therefore acquiesces in the abrogation contemplated by Article 435, for the replacement of a régime also involves its abrogation.

Finally, it appears to me that the second question of the Special Agreement might have been answered by stating that Article 435 *has for its object the abrogation* as between France and Switzerland of the provisions of the Treaty of 1815 and other supplementary instruments, and the replacement of them, by means of an agreement between the two countries, by others which are consistent with present circumstances, the former régime remaining in force until the new one is adopted.

It is perhaps a question of form and not of substance, for the Court (pages 15-16) recognizes that if the two countries succeed in reaching the agreement provided for in Article 435, paragraph 2, this agreement will have the formal effect of abrogating the former provisions; but it appears to me that the terms of the reply indicated above would be more exactly in accordance with the intention and wording of the Treaty.

(Signed) EPITACIO PESSÔA.
